Judgment Sheet

IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.77789 of 2023

Ali Haider & another Vs. Muhammad Boota & another

JUDGMENT

Date of hearing: 23.01.2025.

Petitioners by: Mr. Naveed Khalid, Advocate

Respondents by: Sheikh Miraj Din, Advocate

Shujaat Ali Khan, J: - Unnecessary details apart, the facts, as gleaned out from the instant petition, are that the petitioners filed suit seeking cancellation of Sale Deed bearing Document No.3814, *Bahi* No.1, *Jild* No.3814, registered with Sub-Registrar, Model Town, Lahore on 03.08.2001 and permanent injunction against the respondents *inter-alia* with the averments that their late father, namely, Raza Muhammad appointed respondent No.1 as his General Power of Attorney through document bearing No.2157, Book No.4, Volume No.1124, dated 08.06.2001 *qua* property measuring 25 marlas situated in Macca Colony, Guru Mangat, Lahore Cantt. (***hereinafter to be referred as suit property***) but subsequently

revoked the said Power of Attorney through document bearing No.2809, Book No.4, Volume No.1131, registered with the Sub-Registrar, Model Town, Lahore on 31.07.2001; that respondent No.1, despite revocation of General Power of Attorney executed in his favour, fraudulently transferred the land, owned by late father of the petitioners, in favour of respondent No.2 *vide* Sale Deed bearing No.8010, Book No.1, Volume No.3814, dated 03.08.2001; that after death of their father on 01.02.2014, the petitioners contacted *Patwari Halqa* in the year 2019 whereupon they came to know about the fraud played by respondents with father of the petitioners and ultimately they prayed for decreeing the suit and cancellation of the sale deed executed in favour of respondent No.2.

Upon service of notice, respondents entered appearance and filed their Written Statement *inter-alia* taking objections that the petitioners had no *locus standi* to file the suit; that since the transaction was executed on the basis of validly executed General Power of Attorney, the same was immune from challenge before the court; that before revocation of General Power of Attorney, the sale deed, subject matter of the suit, was executed and since the plaint of the suit for permanent injunction, filed by the father of the petitioners, was rejected by

Civil Court through order, dated 23.02.2005, the petitioners were debarred to file suit and that even after cancellation of FIR, got registered by father of the petitioners against the respondents and dismissal of application of the petitioners for initiation of proceedings under section 476 Cr.P.C. against the respondents, it became past and close transaction, thus could not be reopened through fresh suit.

2. Out of divergent pleadings of the parties, the learned Trial Court framed following *Issues*:-

1. *Whether the impugned sale deed bearing document No.8010 Bahi No.1 Jild No.3814 dated 03.08.2001 in favour of defendant No.1 is result of fraud, misrepresentation and connivance of the defendants? OPD*
2. *Whether the plaintiffs are entitled for the decree as prayed for? OPD*
3. *Whether the plaintiffs have no cause of action to file the suit in hand? OPD*
4. *Whether the plaintiffs have not come in the court with clean hands? OPD*
5. *Whether suit is hopelessly time barred? OPD*
6. *Whether suit in hand is not maintainable in its present form? OPD*
7. *Whether the plaintiffs have no locus-standi to file this suit? OPD*
8. *Relief?*

To discharge their onus, Ali Haider (petitioner No.1) appeared as PW-1. In addition thereto, the petitioners also examined Salah-ud-Din and Maqsood Ahmed as PW-2 & PW-3. In documentary evidence, the petitioners tendered Sale Deed (Exh.P1), General Power of Attorney, dated 08.06.2001 (Exh.P2), Revocation Deed (Exh.P3), Death Certificate (Exh.P4), Sale Deed bearing document No.8010, dated 03.08.2001 (Exh.P5), Death Certificate (Exh.P6) and Application (Exh.P7).

On the other hand, the respondents appeared in the witness box as DW-1 and DW-2. They also examined Akhtar Ali and Khalid Mehmood as DW-3 to DW-4. In documentary evidence, they produced copy of suit (Exh.D/1), FIR (Exh.D/2), General Power of Attorney (Exh.D/3), suit titled Muhammad Anwar v. Fayyaz Shahzad (Exh.D/4), Death Certificates (Exh.D/5 & Exh.D/6), Suit titled Raza Muhammad v. Muhammad Boota etc. (Exh.D/7), Sale Deed (Exh.D/8) and Agreement to Sell (Exh.D/9).

3. Learned Trial Court after thrashing evidence of parties and hearing their respective arguments, dismissed the suit of the petitioners *vide* judgment and decree, dated 18.03.2023, against which they filed an appeal but without any success as the same

was dismissed by the learned Additional District Judge, Lahore (***the Appellate Court***) *vide* judgment and decree, dated 01.09.2023; hence this petition.

4. Learned counsel for the petitioners submits that since the sale deed was registered after revocation of General Power of Attorney, the said transaction being spurious in nature could not sustain; that both the courts below have mainly decided the matter against the petitioners on the ground that they failed to challenge it with promptitude but while holding so the *fora* below omitted to note that no limitation runs against void transaction; that since respondent No.1 transferred the land in favour of respondent No.2, who happened to be his real brother, same could not be done without seeking prior written permission of the principal; that non-production of agreement to sell, allegedly executed by late father of the petitioners in favour of respondent No.1, renders the entire transaction as dubious. To fortify his contentions, relies on *Mst. Naila Kausar and another v. Sardar Muhammad Bakhsh and others* **(2016 SCMR 1781)** and *Shakeel Ahmed v. Gulzar and others* **(2024 CLC 500)**.

5. Sheikh Miraj Din, Advocate, having watching brief on behalf of the respondents, has filed power of attorney on behalf

of the respondents despite the fact that notices have not been issued to the respondents. In the given circumstances, this case is treated and heard as *Pacca Case*.

6. Learned counsel appearing on behalf of the respondents, while defending the impugned judgments and decrees, states that *mala-fide* on the part of the petitioners is manifest from the fact that though they were aware about execution of Sale Deed in favour of respondent No.2 right from the inception but they concealed the same while filing the suit; that after dismissal of application, filed by the petitioners for initiation of proceedings under Section 476 Cr.P.C. against the respondents and rejection of the plaint of the suit for permanent injunction, filed by their father, the petitioners had no *locus standi* to file the suit; that though father of the petitioners remained alive for more than thirteen years after execution of sale deed but he did not challenge the same, hence the petitioners could not impugn the validity of said document in the year 2019; that since suit of the petitioners was hopelessly time barred, no illegality has been committed by the courts below while rendering the impugned decisions; that once the petitioners opted to move application for initiation of proceedings, under Section 476 Cr.P.C. against the respondents, they could not resort to other remedies,

including suit seeking cancellation of sale deed as the proceedings filed by them were hit by the doctrine of election; that as General Power of Attorney was used by way of execution of an Agreement to Sell by the Attorney in favour of one Akhtar Ali, on 14.07.2001, the subsequent revocation of General Power of Attorney on 31.07.2001, was inconsequential; that *mala-fide* on the part of the petitioners is evinced from the fact that in the evidence they claimed that when they approached *Patwari Halqa* in the year 2019, they were given *Fard Malkiat* showing transfer of suit property in favour of respondent No.2 but said respondent having alienated three Marla out of the land, subject matter of the sale deed, in the year 2008, could not be shown as owner of the entire suit property; that non-filing of any complaint by the petitioners against the Advocate(s), who filed Power of Attorney on behalf of their father also speaks volumes about the fact that their father instituted suit for permanent injunction, plaint whereof was rejected under Order VII rule 11 CPC; that though the petitioners did not examine the witnesses of Revocation Deed on the premise that they were no more alive but they did not produce their death certificates to substantiate said fact; that the case-law referred by learned counsel for the petitioners is

inapplicable to the facts and circumstances of present case inasmuch as for the first time in the year 2004, it was declared by the Hon'ble Supreme Court of Pakistan that when an attorney opts to transfer land, subject matter of General Power of Attorney, in favour of his kith and kin, written permission of the principal is necessary, thus, same could not be applied to the transaction, which was completed in the year 2001; that if the petitioners had any doubt about genuineness of thumb impressions of their father on the *Vakalat Namas*, submitted in the suit for permanent injunction before Civil Court, they could conveniently move the Court to get verified the same from the Finger Print Expert but having not done so, their oral assertion in that regard cannot be accepted; that material inconsistencies on the part of the petitioners as well as their witnesses dis-entitle them for any relief by this Court and that by filing suit in the year 2019, the petitioners attempted to open a past and closed transaction. To fortify his contentions, learned counsel, in addition to producing certified copies of application seeking initiation of proceedings under section 476 Cr.P.C. against the respondents alongwith its dismissal order and appeal filed by the petitioners against dismissal of their application seeking initiation of proceedings under section 476 Cr.P.C, has relied

upon the cases reported as *Chief Executive Officer NPGCL, GENCO-III, TPS Muzafargarrah v. Khalid Umar Tariq Imran and others* **(2024 SCMR 518)** and *Trading Corporation of Pakistan v. Devan Sugar Mills Limited and others* **(PLD 2018 S.C. 828)**.

7. While exercising his right of rebuttal, learned counsel for the petitioners submits that the Agreement to Sell, being referred by learned counsel for the respondents, was between Raza Muhammad and Akhtar Ali but the Sale Deed, subject matter of the suit, having been executed between Raza Muhammad and Muhammad Mushtaq, had no connectivity with the former; that application for initiation of proceedings under Section 476 Cr.P.C. was related to a statement made by the respondents in some other matter, thus the same could not be used to hold the suit of the petitioners non-maintainable and that since respondent No.1 was not given any power to transfer the land in the name of his own kith and kin, he was bound to solicit written permission from the principal especially when he opted to transfer the land in the name of his real brother.

8. I have heard learned counsel for the parties at length and have also gone through the documents, appended with this

petition and those produced during arguments, as well as the case-law cited at the bar.

9. Admittedly, respondent No.1 executed sale deed on behalf of Raza Muhammad, father of the petitioners, in favour of respondent No.2, who is his real brother. It is well established by now that when an attorney opts to transfer land on the basis of General Power of Attorney in favour of his kith and kin, he is bound to get written permission from the principal simply for the reason that no prejudice is caused to the principal due to *inter-se* relation between the attorney and prospective vendee. The Apex Court of the country in the case of *Mst. Naila Kausar and another* (supra) while dilating upon a question relating to the powers of an attorney to transfer the property, subject matter of General Power of Attorney, in his own name or to his kith and kin without written permission of the principal has *inter-alia* held under: -

> *"7. It is an admitted fact that Mst. Fatima Jan was the original owner of the property, who was an aged woman. It appears from the record that she executed a power of attorney in favour of Appellant No.2 Sardar Muhammad Aslam, who was an official in the Revenue Department and not related to Mst. Fatima Jan. It is settled law that an attorney cannot utilize the powers conferred upon him to transfer the property to himself or to his kith and kin without special and specific consent and permission of the principal……"*

Though learned counsel representing the respondents has tried to establish that since the first decision of Hon'ble Supreme Court of Pakistan on the point of prior permission of the principal in case the attorney opts to transfer the land in favour of his kith and kin surfaced on the scene in the year 2004 the same could not be made applicable to the transactions which was finalized prior to the said year. Perhaps, learned counsel has raised said plea in oblivion of the fact that the Apex Court of the country in the case of *Mst. Shumal Begum v. Mst. Gulzar Begum and 3 others* **(1994 SCMR 818)** while dilating upon the condition, under discussion, *inter-alia* observed as under: -

> *"The second aspect which needs caution on question of validity of acts under a power of attorney is that notwithstanding an authority to alienate principal's property, the attorney is not absolved from his two essential obligations, amongst others:*
>
> *Firstly in cases of difficulty (and it will be a case of difficulty if the power of attorney is susceptible to doubt about its interpretation) to use all reasonable diligence in communicating with the principal and seeking to obtain his instructions, and secondly, if the agent deals on his own account with the property under agency, e.g. if he purchases it himself or for his own benefit, he in his own interest should obtain the consent of the principal in that behalf after acquainting him with all material circumstances on the subject, failing which the principal is at liberty to repudiate the transaction. The following two examples given under section 215 of the Contract Act are illustrative of the intention of the law:-*
>
> *(a) A directs B to sell A's estate. B buys the estate for himself m the name of C. A, - on discovering that B has*

> *bought the estate for himself, may repudiate the sale, if he can show that B has dishonestly concealed any material facts, or that the sale has been disadvantageous to him.*
>
> *(b) A directs B to sell A's estate. B' on looking over the estate before selling it, finds a mine on the estate which is unknown to A. B informs A that he wishes to buy the estate for himself, but conceals the discovery of the mine. A on discovering that B knew of the mine at the time he bought the estate, may either repudiate or adopt the sale at option."*
>
> *In view of the above-stated legal position we are of the view that the alienation of the property by respondent No.2 in favour of his wife Mst. Gulzar Begum on the basis of power of attorney executed by late Said Nawab in his favour was not sustainable in law……"*

If the plea of the learned counsel for the respondents that condition of written permission by the attorney in the event he chooses to transfer subject property in favour of his kith and kin was not applicable in the year 2001, is adjudged while putting it in juxtaposition to the afore-referred judgment of the Hon'ble Supreme Court rendered in the year 1994, the same appears to be ill-founded.

10. Admittedly, respondent No.2 being beneficiary of the transaction was bound to prove the execution of a sale deed in his favour against valid consideration. While filing Written Statement, the respondents mainly relied upon the fact that since the suit, filed by the father of the petitioners as well as application filed by the petitioners for initiation of proceedings

under section 476 Cr.P.C., were not only dismissed but also the criminal case got registered by their father against the respondents was cancelled, the petitioners were debarred to file suit. However, during evidence, with a view to improve their case, respondent No.1 (DW-1) for the first time introduced a novel story by stating that as a matter of fact he purchased the land from father of the petitioners through an Agreement to Sell and due to said fact father of the petitioners executed General Power of Attorney in his favour. The said plea having not been taken in the Written Statement could not be allowed to be introduced during evidence and said portion from the statement of respondent No.1(DW-1) could not be read to decide the fate of the suit filed by the petitioners. If any case-law is required, reference can be made to be cases of *Wasi-Ud-Din v. Fakhra Akhtar and 4 others* **(2011 SCMR 1550**), *Mst. Aziza Khanum alias Shah Pari and another v. Member-II, Board of Revenue, Government of Balochistan, Civil Secretariat, Zargoon Road, Quetta and 5 others* **(2024 YLR 2314)** and *Abdul Rasheed v. Zahoor-ud-Din (deceased) through Legal Heirs and others* **(2024 CLC 1060**). A bird's eye view over the impugned judgments shows that while deciding the matter against the petitioners, both the courts below relied upon the afore-referred

statement of respondent No.1 (DW-1) thus they misdirected themselves while deciding the suit as well as the appeal filed by the petitioners.

11. It is relevant to note that though respondent No.1 (DW-1) attempted to establish that he was not just an attorney of late father of the petitioners rather being a purchaser on the basis of a written agreement to sell he had the power to sell the suit property in favour of anybody else without any prior permission from the principal but he failed to produce the acclaimed agreement to sell. While replying to a suggestion as to whether he produced the agreement to sell, allegedly executed in his favour by late father of the petitioners, respondent No.1(DW-1) stated as under: -

"میرے ساتھ رضا محمد نے جب مجھے مختار عام کیا تھا میرے ساتھ اقرار نامہ معاہدہ بیع بھی کیا تھا۔ یہ بات درست ہے کہ میں نے مذکورہ اقرار نامہ معاہدہ بیع عدالت میں پیش نہ کیا ہے۔"

The afore-quoted lines from the statement of respondent No.1(DW-1) render it crystal clear that he failed to produce the most crucial document. It is trite law that when a party withholds the best available evidence, it is bound to face its consequences. The Apex Court of the country in the cases of *Muhammad Boota through L.Rs. v. Mst. Bano Begum and*

others (**2005 SCMR 1885**) has held that when a party withholds best available evidence he is bound to face its consequences. If the omission on the part of respondent No.1 (DW-1) towards non-production of acclaimed agreement to sell executed by the late father of the petitioners in his favour is considered in the light of the afore-referred judgment of the Hon'ble Supreme Court, there leaves no doubt that the said document had important bearing upon the outcome of the *lis* between the parties and there was no valid justification to withhold the same but said fatal omission on the part of respondent No.1 escaped notice of the courts below.

12. During the course of arguments, learned counsel for the respondents put much emphasis on the fact that on the basis of General Power of Attorney, respondent No.1 (Attorney) executed Agreement to Sell, dated 14.07.2001, in favour of one Akhtar Ali, its subsequent revocation was inconsequential. In this regard, I am of the view that there is no cavil with the fact that on 14.07.2001, respondent No.1 was duly constituted attorney of late father of the petitioners but mere execution of Agreement to Sell in favour of a person, who neither approached any court seeking enforcement of said agreement nor was a party or witness in subsequent sale deed in favour of

respondent No.2, the said exercise of powers by respondent No.1 could not be used to believe that revocation of General Power of Attorney on 31.07.2001 was inconsequential especially when referred agreement to sell had no connectivity with the sale deed, subject matter of the suit filed by the petitioners out of which the present petition has stemmed. Moreover, a perusal of the sale deed, subject matter of the suit, shows that though respondent No.1 was no more attorney of late father of the petitioner after 31.7.2001 but he made statement before Ch. Muhammad Imtiaz Ahmed Khan Advocate/Local Commission on 01.08.2001 vouching the fact regarding receipt of consideration amount on behalf of the principal.

13. The mainstay of the arguments advanced by learned counsel for the respondents is that since Akhtar Ali sold land in favour of respondent No.2 on the basis of Agreement to Sell, dated 14.07.2001, there was no compulsion for respondent No.1(attorney) to obtain written permission from the principal before transfer of land, subject matter of General Power of Attorney, in favour of his real brother (respondent No.2). Perhaps, learned counsel for respondents has asserted so in oblivion of the fact that admittedly neither Akhtar Ali was

given power to get transferred the land, subject matter of Agreement to Sell, dated 14.07.2001, in the name of somebody else nor there was any mention in the sale deed, subject matter of the suit, to the effect that the same was being executed in continuation of the said Agreement to Sell, thus said transaction could not be considered as continuation of Agreement to Sell, dated 14.07.2001, rather the same was to be treated as independent and respondent No.1 could not transfer the land in favour of his real brother (respondent No.2) without seeking written permission of the principal.

14. It is important to mention over here that the learned Trial Court tried to justify that since on the strength of Agreement to Sell, dated 14.07.2001, Akhtar Ali sold suit property in favour of respondent No.2, therefore, respondent No.1 was not bound to get written permission from the principal/late father of the petitioners by *inter alia* observing as under: -

> *"11. Evidence of Dws has establish that before cancellation of general power of attorney, attorney/defendant No.1 on saying of DW-3 got registered the impugned registered deed in favour of the defendantNo.2. The said fact is supported by the written agreement Exh.D-9 as well as evidence of DWs including evidence of Khalid Mehmood and Muhammad Ramzan attesting witnesses of Exh.D-9……"*

The afore-quoted findings of the learned Trial Court stand negated from the statements of DWs that neither Akhtar Ali was given power to get transferred the suit property in the name of anybody else nor he executed any agreement to sell in favour of respondent No.2. Moreover, the sale deed, subject matter of the suit, does not depict that the same was executed in continuation of agreement to sell, dated 14.07.2001.

15. Considering from another angle, the execution of agreement to sell, dated 14.07.2001, by respondent No.1 as attorney on behalf of the principal seems to be a device to bye-pass the condition of written permission from the principal prior to transfer of land in favour of respondent No.2, who happened to be real brother of respondent No.1 (attorney). This observation also get supports from the fact that when respondent No.1 came to know that the principal had filed application for revocation of General Power of Attorney on 28.7.2001, he proceeded to sell the suit property to his real brother on 31.07.2001 when General Power of Attorney was revoked by the late father of the petitioners.

16. Now taking up the plea of the respondents that since not only the suit, filed by the late father of the petitioners for permanent injunction, as well as application for initiation of

proceedings under Section 476 Cr.P.C., filed by the petitioners were dismissed but also a criminal case got registered by father of the petitioners against the respondents was cancelled, the petitioners were debarred to file suit challenging the transaction in favour of respondent No.2, I am of the view that during cross examination, respondent No.1 (DW-1) admitted that the suit filed by father of the petitioners, was not for cancellation of the Sale Deed, thus, rejection of plaint of the suit, could not be used to hold suit of the petitioners as non-maintainable. Likewise, during cross examination respondent No.1 admitted that he did not produce any order of the Magistrate concerned agreeing with the cancellation report submitted by the Police, which *prima facie* means that findings of the Police were not endorsed by the forum concerned. Further, even if the criminal case, registered against the respondents, was cancelled, the said fact did not preclude the petitioners to bring civil suit against the respondents. Similarly, dismissal of the application of the petitioners for initiation of proceedings under section 476 Cr.P.C. against the respondents on account of filing unauthorized suit on behalf of their father did not operate as estoppel or *res-judicata* as prior to the year 2019 the petitioners

did not seek cancellation of sale deed executed in favour of respondent No.2.

17. While addressing the Court, learned counsel for respondents put much emphasis on the fact that the petitioners did not produce any document to show that General Power of Attorney, executed in favour of respondent No.1, was revoked by their late father, thus, sale deed was validly executed by respondent No.1 in favour of respondent No.2. Perhaps, learned counsel for the respondents has raised such plea in oblivion of contents of preliminary objection No.4, taken by the respondents in their Written Statement, which for convenience of reference is reproduced herein below:-

> *"4. That the predecessor of the plaintiff although cancelled the general power of attorney vide document No.2809 Bahi No.4 Jild No.1131 dated 31-7-2001 but before this, the general attorney of the predecessor of the plaintiff namely Raza Muhammad used his powers and sold out the suit property to the defendant No.2, hence the plaintiffs have no cause of action to file the instant suit."*

From the above, it is crystal clear that respondents were well aware about the fact that the late father of the petitioners moved for revocation of the General Power of Attorney on 28.07.2001, through written instrument and the same was registered with the Sub Registrar concerned on 31.07.2001. The afore-quoted

portion from the Written Statement, filed by the respondents, fulfills the conditions of an admission as envisaged under Article 30 of the Qanun-e-Shahadat Order, 1984. It is well-settled by now that admitted facts need not to be proved as held in the cases reported as *Mst. Rehmat and others v. Mst. Zubaida Begum and other*s (**2021 SCMR 1534**), *Chiragh (deceased) through L.Rs. v. Ibrahim and others* (**2010 SCMR 1976**) and *Nazir Ahmad and another v. M. Muzaffar Hussain* (**2008 SCMR 1639**). In the last-mentioned case, the Apex Court of the country, while responding to the proposition, under discussion, has *inter-alia* held as under: -

> *"8. So far as the execution of agreement is concerned, the appellant Nazir Ahmad who appeared as D.W.1 admitted the execution of the agreement for sale of the property in dispute for consideration of Rs.50,000 and the execution of the agreement was further testified by Allah Ditta Scribe of the document who appeared as D.W.4. The said witness appeared twice in the Court; firstly as P.W.1 and secondly as D.W.4 and admitted the thumb impression of Nazir Ahmad and signatures of Rashid Ahmad appellants on the agreement to sell (Exh.P.1). It means that the execution of agreement is admitted not disputed and it is well settled proposition of law that the admitted facts need not to be proved……"*

If the contention of the learned counsel for the respondents is seen in the light of the afore-referred judgment of the august Supreme Court of Pakistan, there leaves no ambiguity that

when the respondents admitted the revocation of General Power of Attorney, the petitioners could not be saddled with the responsibility to prove the said fact.

18. It is important to mention over here that since respondents miserably failed to create a link between Agreement to Sell, dated 14.07.2001 and Sale Deed executed on 31.07.2001, registered with the Sub-Registrar on 03.08.2001, respondent No.2 was bound to prove that he purchased the suit land against a valid consideration but he neither provided the details of transaction in his favour, while filing Written Statement, nor produced in evidence anything to establish that sale consideration was ever passed on to late father of the petitioners, thus, the respondents miserably failed to prove execution of a transaction against valid consideration but said important fact was not given due weightage by the courts below. Moreover, respondent No.2 during his cross-examination admitted that Akhtar Ali was his relative. The said fact strengthens the claim of the petitioners that the respondents, while conniving with Akhtar Ali, manipulated a sale transaction with a view to deprive father of the petitioners of his valuable property.

19. There is no cavil with the fact that the Sale Deed, registered in the year 2001, was challenged by the petitioners in the year 2019 and in ordinary circumstances when any proceedings are hit by limitation, the same are to be nipped in bud but when the respondents failed to prove execution of a valid transaction in favour of respondent No.2, the said question becomes secondary especially when respondent No.1 failed to give any justification for transfer of land in favour of his real brother (respondent No.2) on the basis of General Power of Attorney, which was revoked on the date when the Sale Deed was allegedly executed. Had the said transaction been executed in the name of somebody else, the position might have been different but the facts and circumstances of the present case *prima-facie* speak loud about *inter-se* connivance of the respondents being real brothers just to deprive late father of the petitioners of his property through a sham transaction. It is well established by now that fraud vitiates even solemn proceedings and the acts of the respondents stand proof of the fact that their conduct towards execution of Sale Deed was not above board.

20. It is well settled by now that to prove a valid alienation it is incumbent upon the vendee(s) to establish offer for sale by the vendor; acceptance of offer by the vendee; payment of

amount of consideration and transfer of possession. Insofar as the case in hand is concerned, no proof regarding payment of consideration amount was brought on record by the respondents. Moreover, during his examination-in-chief respondent No.2 (DW-2) stated that possession of 3-Marlas land out of the suit property was handed to him which he further sold in favour of Haji Muhammad etc. The said statement of respondent No.2 makes it indubitably clear that possession of the entire suit property was not transferred to him meaning thereby that important condition for a valid consideration was missing.

21. While scanning the judgment, rendered by the learned Trial Court, I have noted that while deciding Issue No.1 the said forum observed that respondent No.1 (attorney) had no notice about revocation of General Power of Attorney. The said observation of the learned Trial Court stands negated from the contents of Revocation Deed, executed on 28.7.2001 and registered with the Sub-Registrar, Model Town, Lahore on 31.07.2001. This court in the case of *Muhammad Iqbal through L.Rs v. Mehmood Hasan and others* **(2016 MLD 1243)** while dealing with a question relating to authenticity of a sale deed,

executed by the attorney after revocation of his power through written instrument has *inter alia* concluded as under:-

> *"12. Inconsequentiality of the factor of date qua execution of sale deed (Ex.P.1) and Revocation-Deed (Ex.P3) to decide the question involved in this case or issue No.1 persuades me to examine the other feature of the said two documents. The learned counsel for the petitioner/ appellant submits that this riddle may be resolved by taking into consideration the time at which the documents were registered by the Sub-Registrar. In this context he urges that the sale-deed (Ex.P1) was registered on 12.6.1990 at 9/10 a.m. whereas Revocation-Deed(Ex.P3) was registered on 12.6.1990 at 1.00/2.00 p.m.; that as per principle laid down in the case of "Mst. Rasheeda Bibi and others v. Mukhtar Ahmad and others" (2008 SCMR 1384) the certificate of registration or endorsement on the registered document carries a presumption of truth and, thus, the time mentioned on the documents by the Sub-Registrar shows that sale deed (Ex.P1) was registered prior to revocation of power of attorney; and, that according to dictum laid down in the case of "Ahmad Khan and another v Zaheer Ahmad Kahn Tareen and 7 others" (PLD 1986 Lah. 184) the document registered prior in time has priority. I am not inclined to accept this contention for the reason that the documentary evidence available on record does not support it. Mehmood Hassan, the original owner of the suit property, being aggrieved by the Mutation No. 3701 dated 13.6.1990 (Ex.D10) which was attested by the AC-II Gujranwala on the basis of sale-deed (Ex.P1) filed an appeal before the District Collector, Gujranwala. The District Collector called for a report from the Sub-Registrar, Gujranwala in respect of the time of execution of sale-deed (Ex.P 1) and Revocation-Deed (Ex:P.3). Pursuant to above said order an inquiry was got conducted through the Naib Tehsildar, Gujranwala who on 24.11.1990 reported as follows:--*
>
> *"a) the original copy of the cancellation deed, though registered on 12.6.1990, does not carry any entry regarding the 'time' and 'day' of registration;*

b) the original copy of the cancellation deed, which was returned back to the executioner/petitioner, bears serial No. 162, whereas the copy pasted on the official register carries the No.262. This discrepancy is indicative of mala fide intent on the part of the respondents and the revenue staff;

c) the executioner of the cancellation deed (petitioner) was made to write in his own hands on the cancellation deed that it was presented around 1.00 p.m. before the Sub-Registrar, whereas this practice had not been followed for any other document registered in that office."

This report has been incorporated by the District Collector in his order dated 27.01.1991 (Ex.D7) whereby appeal of Mahmood Hassan, respondent No.1, was accepted and the order of AC-II, Gujranwala dated 1.16.1990 with respect to attestation of Mutation No.3701 was set aside. The present petitioner/appellant assailed the above said order dated 27.1.1991(Ex.D7) through a review petition under Section 163 of the Land Revenue Act, 1967 before the District Collector. The review was dismissed by the District Collector vide order dated 8.7.1992 (Ex.D-8). The petitioner/appellant through a revision petition under Section 164 of the Punjab Land Revenue Act, 1967 assailed the afore-stated order dated 8.7.1992 (Ex.D.8) of the District Collector before the Commissioner, Gujranwala Division, Gujranwala. The Commissioner after affording opportunity of hearing to the present petitioner/appellant and respondent No.1, Mehmood Hassan, dismissed the revision vide order dated 26.4.1993 (Ex.D-9). The petitioner/appellant never assailed the order dated 8.7.1992 (Ex.D-8) and order dated 26.4.1993 (E.D-9) before any higher forum or court and thus the findings qua the time mentioned on the sale-deed (Ex.P1) and the Revocation-Deed (Ex.P3) attained finality. Besides above, the report of Inquiry Officer (Ex.D-2) and the statement of Sikandar Hayat (DW-1); and, Ashiq Ali (DW5), reproduced in preceding paragraph,---who had no malice and enmity against the petitioner/appellant--- are sufficient piece of evidence to disbelieve the statement of Sub-Registrar (PW-2). Learned counsel for the petitioner/appellant, in this regard, has also failed to

> *point out any mis-reading and non-reading of evidence by the learned courts below. Thus, in the presence of above stated orders/documentary evidence and statement of witnesses it becomes clear that the Sub-Registrar with mala fide intent mentioned the time on sale deed (Ex.P1) and Revocation-deed (Ex.P.3); and, that the sale deed (Ex.P1) was registered, after the registration of Revocation-Deed (Ex.P3).”*

If the observation of the learned Trial Court is adjudged in the light of the afore-referred judgment of this court, the same cannot be allowed to sustain.

22. Inconsistent approach on the part of the learned trial court is evident from the fact that in concluding part of para 10 of its judgment observed that no criminal proceedings were initiated against the respondents-defendants but in para 14 the learned Trial Court has exhaustively discussed the criminal case got registered by father of the petitioners against the respondents. In presence of such glaring inconsistencies, the decision of the learned Trial Court did not qualify the test of a judicial verdict.

23. Though the learned Appellate Court was supposed to give its independent findings on all *Issues* but a perusal of the judgment, passed by the said forum, shows that instead of applying its independent mind toed the line of the learned Trial

Court, thus it failed to clinch the controversy between the parties in its true perspective.

24. There is no cavil with the preposition that ordinarily concurrent findings of facts recorded by the courts below cannot be interfered, however, the same cannot be considered as sacrosanct especially when they are found arbitrary or perverse. Reliance in this regard is placed on the case reported as *Hajid Wajdad v. Provincial Government through Secretary, Board of Revenue Government of Balochistan, Quetta and others* (**2020 SCMR 2046**) and *Subedar (Retd.) Jamil Khan (deceased) through legal heirs v. Salim Khan (deceased) through legal heirs and 06 others* (**2017 SCMR 860**).

25. Now coming to the case-law, referred by the learned counsel for the respondents, I am of the view that the same is inapplicable to the peculiar facts and circumstances of the present case inasmuch as in the referred cases, the Apex Court of the country *inter alia* discussed the doctrine of election but since neither their father, during his life time, nor the petitioners challenged sale deed prior to institution of suit in the year 2019, said doctrine is inapplicable in the present matter.

26. As a necessary corollary to above discussion, I have no hesitation to hold that respondents miserably failed to prove execution of a valid transaction. Consequently, this petition is **accepted** and impugned judgments and decrees of the courts below are **set-aside**. As a result, the suit filed by the petitioners shall stands **decreed**. No order as to costs.

JUDGE

APPROVED FOR REPORTING

JUDGE

Jamil*